

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 21, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	22CV396049	Jose Lopez Mendez v. Heriberto Mote Ponce	Click LINE 1 or scroll down for ruling.
Line 2	24CV452177	Sampath Putta v. Leslie Henry et al.	Click LINE 2 or scroll down for ruling.
Line 3	25CV460105	Level Up Home Remodeling, Inc. v. Michael Panepucci et al.	Cross-defendants' demurrer to cross-complainants' first amended cross complaint. Due to a stipulation and order granting leave to file a second amended cross-complaint, the matter is taken OFF CALENDAR.
Line 4	20CV367997	Francisco Carrascal et al. v. AAA Insurance et al.	Defendant Guillermo Chavarria's motion to dismiss for failure to prosecute. Notice is proper and the motion is opposed by plaintiff Francisco Carrascal. Code of Civil Procedure section 583.310 states: "An action shall be brought to trial within five years after the action is commenced against the defendant." If a case is not brought to trial within the five-year period, dismissal is mandatory unless a statutory exception applies. (Code Civ. Proc., § 583.360, subd. (a) ["An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article."].) The original complaint in this action was filed in July 2020. The action has not been brought to trial. More than five years have elapsed. Plaintiff has not demonstrated that any statutory exception applies. The motion is GRANTED and the matter is dismissed with prejudice. The court will prepare the order.

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